

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
THE CITY OF NEW YORK,

AFFIRMATION

Plaintiff,

Index No.

- against -

THE LAND AND BUILDING KNOWN AS 512 WEST
42nd STREET, *et al.*,Defendants.
-----X

Sergeant Jason Castillo affirms the following to be true, under penalties of perjury,
pursuant to Rule 2106 of the Civil Practice Law and Rules:

1. I am a member of the New York City Police Department and I am currently assigned to the 10th Precinct. My duties include, but are not limited to, the enforcement of laws concerning alcoholic beverages.

2. This affirmation is based on my personal observations, my review of records of the City of New York, and conversations with officers, employees and agents of the City of New York.

3. I submit this affirmation in support of plaintiff's application for a preliminary injunction and a temporary restraining order enjoining the use of the commercial premises located on the basement, ground floor and second floor of 512 West 42nd Street, New York, New York (the "subject premises"), for the unlicensed sale, on-premises consumption and warehousing of alcoholic beverages.

4. Members of the NYPD have come to know the subject premises as a business operating as "Baby's NYC." This is based on information provided by members of the public, as well as postings to social media websites, such as X and Instagram. The subject premises is

operated as nightclub/lounge that sells alcoholic beverages. This includes, for example, a posting to Instagram advertising an event that was scheduled to take place at the Subject Premises on October 11, 2024. In this posting, it was stated that alcoholic beverages would be offered for sale, including cognac and tequila.

5. Furthermore, upon information and belief, no one has obtained a license from the New York State Liquor Authority ("SLA") to sell, serve and/or warehouse alcoholic beverages within the subject premises since June 30, 2024, when the prior SLA license expired.

December 9, 2024

6. On the evening of December 8, 2024, going into the morning of December 9, 2024, the NYPD became aware that an event would take place within the subject premises. This included a potential musical performance. In order to be able to quickly respond to any emergency incidents, I and other officers from the 10th Precinct were assigned to remain in the vicinity of the subject premises during this event.

7. Upon arriving at the subject premises, I and the other officers introduced ourselves to individuals who appeared to be employed as security guards for the subject premises. We made the security guards aware that we were outside the subject premises and we were available to respond to any incidents that required police attention.

8. At approximately 1:30 a.m. on December 9, 2024, one of the security guards approached me and the other officers and informed us that three (3) gun shots had just occurred within the subject premises. I and the other officers then entered the subject premises in order to assist the victim, as well as prevent any potential additional violence.

9. As I entered the subject premises I observed numerous patrons running out of the building. By the time I was able to enter the subject premises, it appeared approximately seventy

(70) patrons remained inside.

10. A short time later, I and the other officers found a male laying in the rear of the ground floor. Thereafter emergency medical service workers arrived to treat the victim and remove him to a hospital. The victim was later determined by the hospital to have been shot in the head multiple times.

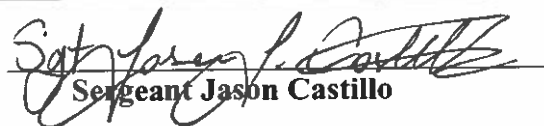
11. While walking throughout the subject premises I observed I observed that it was set up as a nightclub, in that it had DJ booths and areas for dancing.

12. I also observed several bar areas within the subject premises, all of which were stocked with alcoholic beverages, including spirits and beer. I knew these bottles to contain alcoholic beverages based on my training and experience, as well as the distinctive packaging. One of the bars had a sign attached to it, which advertised "Mr Sancho Pancho" brand tequila. At least one of the bars was equipped with multiple cash registers/ordering screens.

13. Furthermore, I observed cups of alcoholic beverages throughout the subject premises, which I determined to contain alcoholic beverages based on their odor and appearance.

14. At no point during my time inside the subject premises did I observe a valid license issued by the New York State Liquor Authority. Furthermore, upon information and belief, no one obtained a license from the New York State Liquor Authority to sell, serve and/or warehouse alcoholic beverages on December 9, 2024.

I affirm this 20 day of DECEMBER, 2024, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.


Sergeant Jason Castillo